

Breach of Contract (1st Cause of Action and 2nd Cause of Action).

2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action and 2nd Cause of Action.
3. Defendant became indebted in the amount of \$9,331.56 on the subject credit card account, which amount is due and owing to Plaintiff.

Costs

The moving papers seek an award of recoverable costs in the sum of \$285.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

8. 9:00 AM CASE NUMBER: L24-11084

CASE NAME: WELLS FARGO BANK, N.A. VS. ZENAIDA SMITH

***HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQUESTS FOR ADMISSIONS AND NONAPPEARANCE FILED BY PLN ON 09/15/2025**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Deem Requests for Admissions Admitted on September 15, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Zenaida M Smith ("Defendant") with a Requests for Admission (Set One). See Declaration of Douglas Agne filed September 15, 2025 ("Supporting Declaration"), ¶1 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on June 3, 2025 by email. *Id.* at ¶1 and **Exhibit A** [attached Proof of Service dated June 3, 2025 (the "Declaration of Service")].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 8, 2025 (30 days from and after June 3, 2025 was July 3, 2025 and two court calendar days thereafter fell on July 8, 2025). No responses were received by

that deadline. See *id.* at ¶12. Despite meet and confer efforts, no responses were received through the time of the filing of the motion. See *id.* at ¶13.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those communications and did not provide responses to the RFAs.
4. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and RFA Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute

and enter.

9. 9:00 AM CASE NUMBER: L25-01401
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ALLEN BREZAC
***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ATTY ON 08/25/2025**
FILED BY: BREZAC, ALLEN
TENTATIVE RULING:

Clinton Rooney of the Huron Legal Group, P.C. (“Counsel”) filed a Motion to be Relieved as Counsel on August 25, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on November 25, 2025.

Background

Counsel seeks to be relieved as attorneys for defendant Allen Brezac (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship in a manner that “precludes further representation.” See Declaration filed August 25, 2025, ¶2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: L25-04349
CASE NAME: WELLS FARGO BANK, NA VS. PEDRO GARCIA
***HEARING ON MOTION FOR DISCOVERY**
FILED BY: WELLS FARGO BANK, NA
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff’s Request for Admissions as Admitted on September 4, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

Background